

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 23, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 9, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Ordinance repealing Ordinance No. 3408, as amended, which adopted the "Cheyenne-Laramie County Subdivision/Development Regulations 2000," and repealing Ordinance No. 3720, as amended, which adopted the "2006 Road, Street, and Site Planning Design Standards," and repealing Title 17, Zoning, of the Cheyenne City Code 2002, in its entirety, and adopting the "Cheyenne Unified Development Code," which is attached hereto as Exhibit A and fully incorporated herein by reference. Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Ms. Ash moved to amend the effective date of the Unified Development Code (UDC) from April 3, 2012 to April 30, 2012, seconded by Mr. Allen. Brandon Cammarata, Planning and Development Director, advised the amendment addresses questions and concerns raised at the Public Services Committee and explained reasons why an effective date of April 30, 2012 was being proposed relative to timing issues and procedures for certain applications (i.e. preliminary and final plats; site plans, etc.) involving current vs. new UDC regulations. Upon inquiry regarding availability of the UDC document to the public, Mr. Cammarata stated the document has been available electronically through the City's website and on CDs throughout the Council process, and indicated that when the document is finalized incorporating the amendments (approved at the January 9, 2012 City Council meeting), the final version will be available electronically on the City's website and through the Planning and Development Office, and

that hard copies will be available for purchase. Question was raised regarding the motion on the floor, which is an amendment to change the UDC effective date to April 30, 2012, and not a proposed substitute as reviewed by Mr. Cammarata during his remarks, which includes an effective date of April 30, 2012. Mr. Pierson offered a friendly amendment to the motion on the floor by clarifying the motion is to amend by substitute dated Jan. 23, 2012, with Ms. Ash, as maker of the initial motion to amend, accepting the friendly amendment. No objection to the friendly amendment was raised by other members of the governing body. Upon inquiry, Mr. Cammarata reviewed proposed language in the substitute ordinance contained in Section 5 which reads as follows: "This ordinance shall be in full force and effect upon approval and publication, but no earlier than April 30, 2012, provided however, that an application for approval of a final plat, if filed after April 30, 2012, shall not be subject to this ordinance if (1) the application is filed within eighteen (18) months following acknowledgment, by the governing body, of receipt of the related preliminary plat, and (2) the application requesting that the governing body acknowledge receipt of the related preliminary plat was filed prior to April 30, 2012." Motion to amend by substitute carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. Following announcement of the vote, Mayor Kaysen thanked members of the community who served on the committee and staff for their time and efforts in preparing and finalizing the UDC, and noted the UDC has an annual review provision that will provide for continuing improvements. (#3943)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for A & M Subdivision, 2nd Filing, a replat of Lot 1, Block One, A & M Subdivision, Laramie County, Wyoming (located east of and adjacent to S. Greeley Highway, south of Prosser Road). Motion (per Consent Agenda) carried. (#5350)

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the East Pershing Boulevard Sanitary Sewer project from Dunn Avenue to Converse Avenue -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Street and Alley Road Maintenance Facility Addition Project, Phase I -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution prioritizing the City of Cheyenne's two applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction Account (Chapter 3) funds -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Resolution approving an Outside User Sanitary Sewer Services Agreement with Tyson Garrett, owner of Lot 6, Block 1, Lindrom Subdivision, Laramie County, Wyoming -- referred to Finance Committee (sponsors - Mr. Pierson and Mr. Valdez).

[CA] Resolution declaring as surplus the City-owned property located at 2100 Pioneer Avenue, Cheyenne, Wyoming, commonly referred to as the City of Cheyenne Board of Public Utilities Administration building, together with all improvements thereon, and authorizing the Director of the Board of Public Utilities and the City's Purchasing Director to proceed with proposed sale of said property pursuant to Wyo. Stat. §15-1-112 -- referred to Finance Committee (sponsor - Mr. Pierson).

Preliminary Plat for Gateway South, 3rd Filing, a replat of Lots 1, 2, 4 and 5, Block One, Gateway South, 2nd Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. Fox Farm Road and Walterscheid Boulevard). James Perrott Macneil spoke in opposition to the preliminary plat and any zoning changes or development on the land. Ms. Ash moved to acknowledge receipt with staff recommendations #1 through 5, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Contract between the City of Cheyenne and the United States Department of Homeland Security for a grant in the amount of \$100,000.00 for the City of Cheyenne Fire and Rescue Hazardous Materials Response Team and Regional Emergency Response Team # 7. Motion (per Consent Agenda) carried. (#5790)

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Coca-Cola North America, Atlanta, GA, for a Sprite® Parks Project grant in the amount of \$20,000.00 for the refurbishment of the Holliday Park basketball courts. Motion (per Consent Agenda) carried. (#5791)

Memorandum of Understanding between the City of Cheyenne and the 37th Helicopter Squadron of the United States Air Force for use of the Belvoir Ranch for helicopter training. James Perrott Macneil made comments in opposition to opening up the Belvoir Ranch for purposes of the proposed Memorandum of Understanding or for any other use. Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown, seconded by Mr. Pierson, moved to amend page 2, Section B, by inserting a new subsection h. to read as follows: "The Government understands and agrees that helicopter landing areas may be restricted or curtailed by the Owner in order to avoid conflicts with wind data collection and/or environmental assessments which may be occurring on the Belvoir Ranch. The Owner agrees to provide the Government with maps, grid coordinates or legal descriptions indicating landing areas being impacted by on going studies.". Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5792)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the Town of Pine Bluffs, Police Department, for law enforcement assistance within the jurisdiction of the Town of Pine Bluffs, Wyoming -- referred to Finance Committee.

[CA] Agreement for Juvenile Compliance and Diversion Officer Services between Laramie County, the City of Cheyenne, and the Laramie County Community Juvenile Services Joint Powers Board for alternatives to juvenile detention, and improve monitoring of juvenile detention facilities -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and Homeland Security Investigations, Immigration and Customs Enforcement, for reimbursement of certain overtime and other law enforcement expenses related to joint operations -- referred to Finance Committee.

[CA] Grant Award Agreement between the City of Cheyenne, Police Department, and the Wyoming Office of Homeland Security for Law Enforcement and Terrorism Prevention activities -- referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 5566, Juvenile Housing Agreement, between the City of Cheyenne and Southeast Wyoming Juvenile Services, LLC, to extend the agreement term for an additional six months -- referred to Finance Committee.

[CA] Consideration of Bid #M-8-12 for a contract for the Pioneer Park Baseball Lighting project between the City of Cheyenne, Parks and Recreation Department, and Superior Electric & Communications, Cheyenne, WY (State Loan and Investment Board funds). Motion (per Consent Agenda) carried (amount not to exceed \$159,000.00). (#5793)

[CA] Consideration of Bid #M-6-12 for a contract for the Lions Park Remediation project between the City of Cheyenne, Parks and Recreation Department, and Scotch Boy, Inc., Cheyenne, WY -- referred to Finance Committee.

[CA] Consideration of Bid #M-9-12 for a contract for the Powers Field Storage Shed project between the City of Cheyenne, Parks and Recreation Department, and Construction Specialists, Inc., Cheyenne, WY -- referred to Finance Committee.

[CA] Consideration of Bid #R-22-12 for furnishing 3 SUV's for the Fire and Rescue and Planning Departments from Sheridan Motor, Sheridan, WY (2007 - 2010 1% Sales Tax and General Fund) -- referred to Finance Committee.

Announcement was made of Appointments of Anne Picot, JoAnne Weigand and Clayton W. Long to the Mayor's Council for People with Disabilities, to be confirmed February 13, 2012.

Under Other Business:

City Clerk Carol Intlekofer advised there will not be a City Council Public Services Committee meeting on Tuesday, February 7, 2012 at Noon, Room 122, Municipal Building, as there are no pending or referred items for the agenda requiring a meeting.

Major Dorr informed those present that a public meeting would be held Tuesday, Jan. 31, 2012 at 6:30 p.m. at the First Baptist Church regarding the topic of school bullying.

Larry Proietti, local business owner, expressed concerns with local fire inspections and code requirements involving restaurants, and the resulting cost to businesses to meet current hood and electrical system upgrade requirements. Comments followed regarding costs to the businesses which

could make them lose their business. Upon inquiry, Jon Narva, Division Chief, Fire and Rescue Department, provided information on the change to national fire protection rules regarding acceptable hood fire extinguishing agents for systems; explained problems being encountered with older systems relative to the unavailability of contractors who can provide maintenance service for the systems as manufacturers have moved away from the older system types due to fire safety concerns; clarified he is not aware of any national association funding assistance to assist business owners with replacement system expenses, and reviewed the inspection process, including inspections involving vacant buildings and those owned by non-local persons, and the requirement of having viable fire extinguishing agents in hood systems. He stated that most restaurants in town are up to code and that the department works with affected businesses on time frames in which to implement an upgraded system. He discussed jurisdictional enforcement of the International Fire Code 2006 edition currently in effect, which was adopted by the City of Cheyenne, and noted the International family of codes are developed to be model codes to meet community needs throughout the country. James Perrott Macneil commented that old buildings should be “grandfathered” under previous codes and replacement of systems shouldn’t be required if it meant putting people out of business.

Upon inquiry, Jim Elias, Public Works Director, provided information on research staff is conducting relative to funding, including the possibility of bonding, the landfill expansion project; explained the different design and construction phases that will be involved, and responded to inquiry regarding sanitation rates, noting a possible effect on customer rates if funding would be through issuance of bonds. He explained staff needs time to explore funding options and evaluate costs and projections prior to submitting to Council, and stated a future work session with City Council would be held to present funding options. He discussed the amount of the City’s current bonding capacity and advised since the proposed funding of the project through the 6th penny ballot process was “off the table”, they need to explore different funding sources. Upon inquiry regarding costs currently being incurred to transport solid waste to Alt, CO, Mr. Elias advised the ultimate goal is to use that funding to help offset costs.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:47 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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